

HOUSE No. 4862

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, December 29, 2025.

The committee on Public Service, to whom was referred the joint petition (accompanied by bill, House, No. 4387) of Leigh Davis (by vote of the town) that the town of Monterey be authorized to continue the employment of police officer Jennifer O. Brown, notwithstanding the maximum age requirement, reports recommending that the accompanying bill (House, No. 4862) ought to pass [Local Approval Received].

For the committee,

DANIEL J. RYAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Monterey to continue the employment of police officer Jennifer O. Brown.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Notwithstanding the provisions of any general or special law to the contrary,
2 Jennifer O. Brown, a patrol officer in the police department of the town of Monterey, may
3 continue in such office or position until she reaches age 70; provided, however, that she is
4 mentally and physically capable of performing the duties of her office or position; and provided,
5 further, that she shall hold said office subject to the approval of or removal by the appointing
6 authority. The appointing authority may, at its own expense, require said Jennifer O. Brown to be
7 examined by the retirement board of the Berkshire County Retirement System to determine her
8 capability for continued service. No further deductions shall be made from the regular
9 compensation of Jennifer O. Brown under said chapter 32 for any service subsequent to her
10 reaching 65 years of age and, upon retirement, Jennifer O. Brown shall receive a superannuation
11 retirement allowance equal to that which she would have been entitled had she retired at 65 years
12 of age. Should said Jennifer O. Brown be determined to be not capable of continuing in service
13 pursuant to an examination by an impartial physician as provided for in this act, she shall be

14 retired for superannuation, and shall not be presumed by virtue of such determination to be
15 disabled for the purposes of said chapter 32.

16 Section 2. This act shall take effect upon its passage.